POLITY 30 - GST COUNCIL

PRE-GST FRAGMENTATION AND THE → ARTICLES 246A, 269A AND → IGST, PLACE OF SUPPLY → ARTICLE 279A COMPOSITION AND → QUORUM, VOTING WEIGHTS AND → COUNCIL FUNCTIONS AND RECOMMENDATION-TO-LAW

Read the thick cyan rail from Stage 00 to the final cone synthesis. Each card uses a concept-appropriate structure; the grey E card is optional enrichment only and never repairs missing core content.

● PRIMARY CORE FLOW ● SUBORDINATE EXTRA ● APPROVAL / REVIEW

CORE BEFORE EXTRA • prior artefacts unchanged • exact same master drives poster and tiles

Approval: FALSE • Pending user review • active generation g4 • explicit approval of this exact generation is required • all prior artifacts unchanged

00

STAGE 00

PRE-GST FRAGMENTATION AND THE 101ST AMENDMENT COMPACT

PRE-GST FRAGMENTATION AND THE 101ST AMENDMENT COMPACT · PRE-GST PROBLEM MANUFACTURE TAX + SERVICE TAX + STATE · BROKEN CROSS-CREDIT + CASCADING + BORDER FRICTION. · 101ST AMENDMENT ACT, 2016 · ARTICLE 246A · SPECIAL SHARED GST COMPETENCE. · ARTICLE 269A · INTER-STATE LEVY, COLLECTION AND APPORTIONMENT.

PRE-GST PROBLEM manufacture tax + service tax + State VAT/CST + entry levies → broken cross-credit + cascading + border friction. → 101ST AMENDMENT ACT, 2016 → Article 246A → special shared GST competence. → Article 269A → inter-State levy, collection and apportionment.

CONSTITUTIONAL BASIS / ARTICLE

- PRE-GST PROBLEM manufacture tax + service tax + State VAT/CST + entry levies
- broken cross-credit + cascading + border friction.
- 101ST AMENDMENT ACT, 2016

POWER / PROCEDURE

- Article 246A → special shared GST competence.
- Article 269A → inter-State levy, collection and apportionment.
- Article 279A → Union-State GST Council.

CHECK / LIMIT

- Article 366(12A) → GST definition.
- CONSTITUTIONAL SURGERY omitted Article 268A + changed distribution provisions and Seventh Schedule entries.
- CORE IDEA pooled fiscal sovereignty for a destination-based common market.

FEDERAL / RIGHTS IMPACT

- "One Nation, One Tax" is shorthand; India operates dual GST with exclusions and variations.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: "One Nation, One Tax" is shorthand; India operates dual GST with exclusions and variations.

01

STAGE 01

ARTICLES 246A, 269A AND THE DUAL-GST ARCHITECTURE

ARTICLES 246A, 269A AND THE DUAL-GST ARCHITECTURE · INTRA-STATE SUPPLY · CENTRAL LAW · STATE/UT LAW · INTER-STATE SUPPLY · ARTICLE 246A(2) · PARLIAMENT HAS EXCLUSIVE GST LEGISLATIVE POWER. · ARTICLE 269A · INTRA-STATE SUPPLY

Central law → CGST · State/UT law → SGST/UTGST. · INTER-STATE SUPPLY: ARTICLE 246A(2)

CONSTITUTIONAL BASIS / ARTICLE

- INTRA-STATE SUPPLY
- Central law → CGST
- State/UT law → SGST/UTGST.

POWER / PROCEDURE

- INTER-STATE SUPPLY: ARTICLE 246A(2).
- Parliament has exclusive GST legislative power.
- ARTICLE 269A

CHECK / LIMIT

- Government of India levies and collects IGST
- parliamentary law on place of supply and apportionment
- settlement between Union and destination State.

FEDERAL / RIGHTS IMPACT

- IMPORT deemed inter-State supply for GST architecture.
- ARTICLE 286 limits State taxation of supplies outside the State or in import/export course.
- IGST is not a third destination government's tax; it is the settlement bridge for an integrated dual-GST system.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: IGST is not a third destination government's tax; it is the settlement bridge for an integrated dual-GST system.

02

STAGE 02

IGST, PLACE OF SUPPLY AND DESTINATION SETTLEMENT

IGST, PLACE OF SUPPLY AND DESTINATION SETTLEMENT · INTER-STATE SUPPLY · PARLIAMENT HAS EXCLUSIVE GST COMPETENCE UNDER ARTICLE 246A(2). · ARTICLE 269A · GOVERNMENT OF INDIA LEVIES AND COLLECTS IGST · PARLIAMENT PROVIDES APPORTIONMENT BY LAW ON COUNCIL RECOMMENDATION. · PLACE OF SUPPLY · PARLIAMENT FORMULATES PRINCIPLES UNDER ARTICLE 269A(5).

INTER-STATE SUPPLY → Parliament has exclusive GST competence under Article 246A(2). → ARTICLE 269A → Government of India levies and collects IGST → Parliament provides apportionment by law on Council recommendation.

CONSTITUTIONAL BASIS / ARTICLE

- INTER-STATE SUPPLY
- Parliament has exclusive GST competence under Article 246A(2).
- ARTICLE 269A

POWER / PROCEDURE

- Government of India levies and collects IGST
- Parliament provides apportionment by law on Council recommendation.
- PLACE OF SUPPLY

CHECK / LIMIT

- Parliament formulates principles under Article 269A(5).
- CREDIT-SETTLEMENT BRIDGE supplier State → IGST collection/credit → destination State revenue.
- IMPORTS deemed inter-State supplies.

FEDERAL / RIGHTS IMPACT

- IGST coordinates dual GST; it is not a third level's final tax.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: IGST coordinates dual GST; it is not a third level's final tax.

03

STAGE 03

ARTICLE 279A COMPOSITION AND INSTITUTIONAL SUPPORT

ARTICLE 279A COMPOSITION AND INSTITUTIONAL SUPPORT · UNION FINANCE MINISTER · UNION MINISTER OF STATE FOR REVENUE/FINANCE. · STATE FINANCE/TAXATION MINISTERS OR NOMINATED MINISTERS. · STATE MEMBERS CHOOSE A VICE-CHAIRPERSON.

CONSTITUTIONAL BASIS / ARTICLE

- Union Finance Minister → Chairperson.
- Union Minister of State for Revenue/Finance.

POWER / PROCEDURE

- State finance/taxation ministers or nominated ministers.
- State members choose a Vice-Chairperson.

CHECK / LIMIT

- Union Finance Minister → Chairperson.
- Union Minister of State for Revenue/Finance.

FEDERAL / RIGHTS IMPACT

- State finance/taxation ministers or nominated ministers.
- State members choose a Vice-Chairperson.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: State finance/taxation ministers or nominated ministers.; State members choose a Vice-Chairperson.

04

STAGE 04

QUORUM, VOTING WEIGHTS AND COALITION ARITHMETIC

QUORUM, VOTING WEIGHTS AND COALITION ARITHMETIC · QUORUM ONE-HALF OF TOTAL MEMBERSHIP. · WEIGHTED VOTE · STATES TOGETHER · AT LEAST THREE-FOURTHS OF WEIGHTED VOTES PRESENT AND VOTING. · UNION ALONE CANNOT PASS; STATES ALONE CANNOT PASS. · UNION CAN BLOCK BECAUSE STATES REACH ONLY TWO-THIRDS WITHOUT · WITH UNION SUPPORT, AT LEAST FIVE-EIGHTHS OF STATE WEIGHT

CONSTITUTIONAL BASIS / ARTICLE

- QUORUM one-half of total membership.
- WEIGHTED VOTE
- Union + one-third

POWER / PROCEDURE

- States together = two-thirds.
- Decision = at least three-fourths of weighted votes present and voting.
- Union alone cannot pass; States alone cannot pass.

CHECK / LIMIT

- Union can block because States reach only two-thirds without it.
- With Union support, at least five-eighths of State weight is needed.
- PRACTICE consensus is preferred, but does not repeal the formal voting rule.

FEDERAL / RIGHTS IMPACT

- States together = two-thirds.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: PRACTICE consensus is preferred, but does not repeal the formal voting rule.

05

STAGE 05

COUNCIL FUNCTIONS AND RECOMMENDATION-TO-LAW CHAIN

COUNCIL FUNCTIONS AND RECOMMENDATION-TO-LAW CHAIN · INSTITUTIONAL SUPPORT · GST COUNCIL SECRETARIAT · AGENDA, RECORDS, COORDINATION AND IMPLEMENTATION FOLLOW-UP. · PROCEDURE PROPOSAL · COMMITTEE/OFFICER ANALYSIS · AGENDA NOTE · CONSENSUS OR WEIGHTED VOTE

INSTITUTIONAL SUPPORT → GST Council Secretariat — agenda, records, coordination and implementation follow-up. → PROCEDURE proposal — committee/officer analysis — agenda note — meeting → consensus or weighted vote — minutes/recommendation — legal instrument. → LEGAL-EFFECT CHAIN constitutional recommendation

CONSTITUTIONAL BASIS / ARTICLE

- INSTITUTIONAL SUPPORT
- GST Council Secretariat — agenda, records, coordination and implementation follow-up.
- PROCEDURE proposal → committee/officer analysis → agenda note → meeting
- consensus or weighted vote → minutes/recommendation → legal instrument.

POWER / PROCEDURE

- LEGAL-EFFECT CHAIN constitutional recommendation
- Parliament/State legislature enacts or amends statute or authorised executive issues rule/notification
- taxpayer obligation.
- RECOMMENDATION FIELDS subsumed taxes

CHECK / LIMIT

- taxable/exempt supplies
- model laws
- place of supply thresholds
- disaster rate

FEDERAL / RIGHTS IMPACT

- petroleum date
- special provisions.
- LEGAL-EFFECT RULE recommendation → statute/rule/notification → effective date → liability.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: LEGAL-EFFECT RULE recommendation → statute/rule/notification → effective date → liability.

06

STAGE 06

ALCOHOL, PETROLEUM, ELECTRICITY AND TAX-BASE BOUNDARIES

ALCOHOL, PETROLEUM, ELECTRICITY AND TAX-BASE BOUNDARIES · ALCOHOLIC LIQUOR FOR HUMAN CONSUMPTION EXCLUDED FROM ARTICLE 366(12A) · FIVE PETROLEUM PRODUCTS · GST LEVY BEGINS FROM A DATE RECOMMENDED UNDER ARTICLE · UNTIL THEN, RETAINED EXCISE/VAT FIELDS CONTINUE. · TOBACCO WITHIN GST WHILE RETAINED UNION EXCISE COMPETENCE ALSO · ELECTRICITY NOT EXCLUDED BY THE GST DEFINITION LIKE ALCOHOL · ELECTRICITY DUTY REMAINS UNDER ENTRY 53 AND SUPPLY TREATMENT

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
ALCOHOLIC LIQUOR FOR HUMAN CONSUMPTION excluded from Article 366(12A) GST definition.	until then, retained excise/VAT fields continue.	electricity duty remains under Entry 53 and supply treatment needs exact law.	INPUT-TAX CREDIT reduces cascading where statutory eligibility and compliance conditions are met.
FIVE PETROLEUM PRODUCTS	TOBACCO within GST while retained Union excise competence also exists.	RATE / EXEMPTION / THRESHOLD	TRAP do not convert a press release into a self-executing tax rate.
GST levy begins from a date recommended under Article 279A(5)	ELECTRICITY not excluded by the GST definition like alcohol	Council recommendation → competent notification or legislation.	

CONSTITUTIONAL BASIS / ARTICLE

- ALCOHOLIC LIQUOR FOR HUMAN CONSUMPTION excluded from Article 366(12A) GST definition.
- FIVE PETROLEUM PRODUCTS
- GST levy begins from a date recommended under Article 279A(5)

POWER / PROCEDURE

- until then, retained excise/VAT fields continue.
- TOBACCO within GST while retained Union excise competence also exists.
- ELECTRICITY not excluded by the GST definition like alcohol

CHECK / LIMIT

- electricity duty remains under Entry 53 and supply treatment needs exact law.
- RATE / EXEMPTION / THRESHOLD
- Council recommendation → competent notification or legislation.

FEDERAL / RIGHTS IMPACT

- INPUT-TAX CREDIT reduces cascading where statutory eligibility and compliance conditions are met.
- TRAP do not convert a press release into a self-executing tax rate.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: TRAP do not convert a press release into a self-executing tax rate.

07

STAGE 07

COMPENSATION BARGAIN, PANDEMIC LOANS AND JUNE 2022 BOUNDARY

COMPENSATION BARGAIN, PANDEMIC LOANS AND JUNE 2022 BOUNDARY · COMPENSATION ACT, 2017 BASE YEAR 2015-16 · PROJECTED ANNUAL REVENUE GROWTH 14%. · PROTECTED REVENUE MINUS ACTUAL REVENUE · COMPENSATION GAP. · FUNDING COMPENSATION CESS ON SPECIFIED SUPPLIES · COMPENSATION FUND. · TRANSITION FIVE YEARS FROM GST INTRODUCTION

COMPENSATION ACT, 2017 base year 2015-16 → projected annual revenue growth 14% → protected revenue minus actual revenue → compensation gap. → FUNDING compensation cess on specified supplies → Compensation Fund. → TRANSITION five years from GST introduction → entitlement ended in June 2022. → PANDEMIC SHOCK revenue/cess shortfall → back-to-back borrowing arrangement

CONSTITUTIONAL BASIS / ARTICLE

- COMPENSATION ACT, 2017 base year 2015-16 → projected annual revenue growth 14%
- protected revenue minus actual revenue → compensation gap.

POWER / PROCEDURE

- FUNDING compensation cess on specified supplies → Compensation Fund.
- TRANSITION five years from GST introduction → entitlement ended in June 2022.

CHECK / LIMIT

- PANDEMIC SHOCK revenue/cess shortfall → back-to-back borrowing arrangement
- cess continued for servicing principal and interest.

FEDERAL / RIGHTS IMPACT

- CURRENT CONTROL: 14 AUGUST 2026 later cess collection for loan servicing != renewed five-year compensation entitlement.
- REFORM LESSON future shocks need transparent accounts, predictable settlement and negotiated burden sharing.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: REFORM LESSON future shocks need transparent accounts, predictable settlement and negotiated burden sharing.

08

STAGE 08

MOHIT MINERALS (2022): PERSUASION AND STATUTE-BOUND DELEGATED ACTION

MOHIT MINERALS (2022) · PERSUASION AND STATUTE-BOUND DELEGATED ACTION · CONSTITUTIONAL HOLDING · ARTICLE 279A RECOMMENDATIONS ARE PERSUASIVE AND CARRY COOPERATIVE VALUE · THEY ARE NOT BINDING COMMANDS ON PARLIAMENT OR STATE · ARTICLE 246A GIVES SIMULTANEOUS LEGISLATIVE POWER AND INDIAN FEDERALISM · STATUTORY QUALIFICATION WHERE GST LEGISLATION CONDITIONS DELEGATED RULES OR · CASE RESULT OCEAN-FREIGHT LEVY FAILED WITHIN THE STATUTORY COMPOSITE-SUPPLY

CONSTITUTIONAL BASIS / ARTICLE

- Mohit Minerals (2022)
- CONSTITUTIONAL HOLDING

POWER / PROCEDURE

- Article 279A recommendations are persuasive and carry cooperative value
- they are not binding commands on Parliament or State legislatures.

CHECK / LIMIT

- Article 246A gives simultaneous legislative power and Indian federalism works through dialogue, not Council hierarchy.
- STATUTORY QUALIFICATION where GST legislation conditions delegated rules or notifications on Council recommendation, the executive must obey that

FEDERAL / RIGHTS IMPACT

- CASE RESULT ocean-freight levy failed within the statutory composite-supply framework.
- TRAP non-binding recommendation != irrelevant Council and it does not authorise executive action contrary to enacted GST law.

MECHANISM / VERDICT — CASE RESULT ocean-freight levy failed within the statutory composite-supply framework.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: TRAP non-binding recommendation != irrelevant Council and it does not authorise executive action contrary to enacted GST law.

09

STAGE 09

ARTICLE 279A(11), ACCOUNTABILITY AND DISPUTE DESIGN

ARTICLE 279A(11), ACCOUNTABILITY AND DISPUTE DESIGN · ARTICLE 279A(11) · COUNCIL SHALL ESTABLISH A MECHANISM FOR SPECIFIED DISPUTES · UNION V STATE(S) · UNION + STATE(S) V OTHER STATE(S) · STATE V STATE, ARISING FROM RECOMMENDATIONS OR IMPLEMENTATION · CURRENT CONTROL · 28 AUGUST 2026 NO COMPLETE PUBLICLY VERIFIED ADJUDICATORY MECHANISM

ARTICLE 279A(11) → Council shall establish a mechanism for specified disputes → Union v State(s) → Union + State(s) v other State(s) → State v State, arising from recommendations or implementation.

CONSTITUTIONAL BASIS / ARTICLE

- ARTICLE 279A(11)
- Council shall establish a mechanism for specified disputes
- Union v State(s)

POWER / PROCEDURE

- Union + State(s) v other State(s)
- State v State, arising from recommendations or implementation.
- CURRENT CONTROL: 28 AUGUST 2026 no complete publicly verified adjudicatory mechanism is asserted operational.

CHECK / LIMIT

- DO NOT CONFUSE
- GSTAT/taxpayer appeal != constitutional intergovernmental mechanism.
- DESIGN TEST neutral panel + jurisdiction + hearing + reasons + time limit + review.

FEDERAL / RIGHTS IMPACT

- Union + State(s) v other State(s)

MECHANISM / VERDICT — CURRENT CONTROL: 28 AUGUST 2026 no complete publicly verified adjudicatory mechanism is asserted operational.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: DESIGN TEST neutral panel + jurisdiction + hearing + reasons + time limit + review.

10

STAGE 10

FEDERAL GAINS, AUTONOMY COSTS AND INSTITUTIONAL COMPARISONS

FEDERAL GAINS, AUTONOMY COSTS AND INSTITUTIONAL COMPARISONS · GST COUNCIL CONTINUOUS BARGAINING OVER A POOLED INDIRECT-TAX BASE. · FINANCE COMMISSION PERIODIC ARTICLE 280 RECOMMENDATION ON DIVISIBLE TAXES · FEDERAL GAINS COMMON MARKET + DESTINATION SETTLEMENT + SHARED · FEDERAL COSTS REDUCED UNILATERAL STATE RATE SPACE + UNION · UNEQUAL ADMINISTRATIVE CAPACITY. · TECHNOLOGY CHAIN REGISTRATION · CREDIT MATCHING

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
GST COUNCIL continuous bargaining over a pooled indirect-tax base.	FEDERAL COSTS reduced unilateral State rate space + Union veto capacity compensation trust deficit	analytics → audit/appeal.	operational dispute mechanism + stronger State capacity.
FINANCE COMMISSION periodic Article 280 recommendation on divisible taxes and grants.	unequal administrative capacity.	CAUTION digital trace improves verification but can create exclusion, mismatch and refund burdens.	
FEDERAL GAINS common market + destination settlement + shared rule forum + coordinated compliance.	TECHNOLOGY CHAIN registration → invoice/reporting → credit matching → return/payment	REFORM publish revenue models + reasoned minutes + stable rate design	

CONSTITUTIONAL BASIS / ARTICLE

- GST COUNCIL continuous bargaining over a pooled indirect-tax base.
- FINANCE COMMISSION periodic Article 280 recommendation on divisible taxes and grants.
- FEDERAL GAINS common market + destination settlement + shared rule forum + coordinated compliance.

POWER / PROCEDURE

- FEDERAL COSTS reduced unilateral State rate space + Union veto capacity compensation trust deficit
- unequal administrative capacity.
- TECHNOLOGY CHAIN registration → invoice/reporting → credit matching → return/payment

CHECK / LIMIT

- analytics → audit/appeal.
- CAUTION digital trace improves verification but can create exclusion, mismatch and refund burdens.
- REFORM publish revenue models + reasoned minutes + stable rate design

FEDERAL / RIGHTS IMPACT

- operational dispute mechanism + stronger State capacity.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: FEDERAL GAINS common market + destination settlement + shared rule forum + coordinated compliance.

11

STAGE 11

CURRENT CONTROLS, PYQ ROUTES AND ANSWER SPINE

CURRENT CONTROLS, PYQ ROUTES AND ANSWER SPINE · DATED ANCHORS · 56TH COUNCIL MEETING RELEASE · 3 SEPTEMBER 2025. · APRIL 2026 SECRETARIAT NEWSLETTER · NOTIFICATION-ON-RECOMMENDATION EXAMPLE. · NO COMMODITY-WISE CURRENT RATE LIST IS FROZEN. · PRELIMS FIREWALL QUORUM ONE-HALF

DATED ANCHORS → 56th Council meeting release: 3 September 2025. → April 2026 Secretariat newsletter: notification-on-recommendation example. → No commodity-wise current rate list is frozen. → PRELIMS FIREWALL quorum one-half

CONSTITUTIONAL BASIS / ARTICLE

- DATED ANCHORS
- 56th Council meeting release: 3 September 2025.
- April 2026 Secretariat newsletter: notification-on-recommendation example.
- No commodity-wise current rate list is frozen.
- PRELIMS FIREWALL quorum one-half

POWER / PROCEDURE

- Union one-third
- States two-thirds decision threshold three-fourths weighted alcohol excluded
- petroleum deferred
- electricity separately treated recommendation != legislation
- compensation entitlement ended June 2022.

CHECK / LIMIT

- PYQ ROUTES
- 2018 exemption mechanics
- 2019 subsumed taxes
- 2020 compensation
- 2023 101st Amendment/federalism

FEDERAL / RIGHTS IMPACT

- 2025 fiscal-federalism adjacency.
- MAINS SPINE pre-GST defect → three-Article architecture → Council bargain
- legal-effect limit → federal gains/cost → dated anchor
- transparent, predictable and cooperative reform verdict.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: PRELIMS FIREWALL quorum one-half | Union one-third | States two-thirds decision threshold three-fourths weighted alcohol excluded | petroleum deferred | electricity separately treated recommendation != legislation | compensation entitlement ended June 2022.

E

EXTRA

SUBORDINATE ENRICHMENT — ONLY AFTER THE COMPLETE CORE

OPTIONAL ADVANCED ENRICHMENT · GST COUNCIL (ARTICLE 279A) — ADVANCED · PART A — ESTABLISHMENT · PART B — COMPOSITION · PART C — WORKING (VOTING MATHS) · PART D — FUNCTIONS · PART E — CURRENT DEVELOPMENTS · WHAT THIS OWNER MUST NOW SUPPORT

OPTIONAL DOCTRINE / CASE

- GST Council (Article 279A) — ADVANCED / COMPLETE
- PART A — ESTABLISHMENT
- PART B — COMPOSITION
- PART C — WORKING (voting maths)

ADVANCED LIMIT

- PART D — FUNCTIONS
- PART E — CURRENT DEVELOPMENTS
- What this owner must now support
- A constitutional federal recommendatory forum central to GST design — a model

COMPARATIVE NUANCE

- Secretariat at New Delhi ; the Union Revenue Secretary is the ex-officio Secretary ; the CBIC/CBEC
- Recommends the date to bring petroleum crude, diesel, petrol, natural gas, ATF under GST (currently
- Must set up a dispute-resolution mechanism (Centre-state / state-state).
- Recommended compensation to states for revenue loss for 5 years (GST Compensation Act, 2017).

OPTIONAL STATUS — This optional depth is unnecessary for a competent core answer; use it only for added nuance after the complete core has been written.

END OF MASTER CANVAS • poster embeds this exact master • tiled pages are overlapping crops of the same pixels